



NOTICE AND AGENDA OF REGULAR MEETING

Pursuant to the Oklahoma Open Meeting Act (25 O.S. Sec. 301, et seq.), notice is hereby given that the Board of County Commissioners, Pittsburg County, will hold a regular meeting as follows

FILED

DATE: July 14, 2025

TIME: 9:00 A.M.

PLACE: COUNTY COMMISSIONERS CONFERENCE ROOM
PITTSBURG COUNTY COURTHOUSE
115 EAST CARL ALBERT PARKWAY, ROOM 100B
MCALESTER, OKLAHOMA

JUL 11 2025
TIME 8:40 AM
HOPE TRAMMELL, COUNTY CLERK
PITTSBURG COUNTY
BY _____ DEPUTY

***CONSIDERATION, DISCUSSION AND POSSIBLE ACTION TO BE TAKEN ON THE
FOLLOWING LISTED ITEMS ON THE AGENDA***

AGENDA

1. CALL MEETING TO ORDER
2. ROLL CALL:

CHARLIE ROGERS	CHAIRMAN
ROSS SELMAN	VICE-CHAIRMAN
MIKE HAYNES	MEMBER
3. APPROVAL OF AGENDA
4. APPROVE/DISAPPROVE MEETING MINUTES

A. Regular Meeting from July 07, 2025

5. RECOGNITION OF GUESTS/PUBLIC COMMENTS

PERSONS ADDRESSING THE BOARD SHOULD STATE THEIR NAME AND ADDRESS FOR THE RECORD AND WILL BE LIMITED IN DURATION TO THREE (3) MINUTES. COMMENTS ARE LIMITED TO ITEMS ON THE AGENDA. ANY COMMENTS BY THE PUBLIC ON ITEMS NOT ON THE AGENDA CANNOT BE ACKNOWLEDGED OR DISCUSSED BUT CAN BE PLACED ON AN UPCOMING AGENDA FOR DISCUSSION AND POSSIBLE ACTION.

6. OFFICIALS – DEPARTMENT REPORT

A. COUNTY CLERK

- i. U.S. Environmental Protection Agency (EPA) Notice of Administrative Order for Pittsburg County Rural Water District #9 (McAlester), violating the Lead and Copper Rule Revision (LCRR) and Lead and Copper Rule Improvements (LCRI) regulations at 40 C.F.R. 141, Subpart 1, by failing to develop and submit an initial service line inventory to the State of Oklahoma by the October 16, 2024 deadline
- ii. U.S. Environmental Protection Agency (EPA) Notice of Administrative Order for Pittsburg County Rural Water District #7 (Arpelar), violating the Lead and Copper Rule Revision (LCRR) and Lead and Copper Rule Improvements (LCRI) regulations at 40 C.F.R. 141, Subpart 1, by failing to develop and submit an initial service line inventory to the State of Oklahoma by the October 16, 2024 deadline

- iii. U.S. Environmental Protection Agency (EPA) Notice of Administrative Order for Pittsburg County Rural Water District #11 (Kiowa), violating the Lead and Copper Rule Revision (LCRR) and Lead and Copper Rule Improvements (LCRI) regulations at 40 C.F.R. 141, Subpart 1, by failing to develop and submit an initial service line inventory to the State of Oklahoma by the October 16, 2024 deadline
- iv. U.S. Environmental Protection Agency (EPA) Notice of Administrative Order for Pittsburg County Rural Water District #14 (Elm Point Area), violating the Lead and Copper Rule Revision (LCRR) and Lead and Copper Rule Improvements (LCRI) regulations at 40 C.F.R. 141, Subpart 1, by failing to develop and submit an initial service line inventory to the State of Oklahoma by the October 16, 2024 deadline
- v. U.S. Environmental Protection Agency (EPA) Notice of Administrative Order for Savanna, violating the Lead and Copper Rule Revision (LCRR) and Lead and Copper Rule Improvements (LCRI) regulations at 40 C.F.R. 141, Subpart 1, by failing to develop and submit an initial service line inventory to the State of Oklahoma by the October 16, 2024 deadline
- vi. U.S. Environmental Protection Agency (EPA) Notice of Administrative Order for Pittsburg County Rural Water District #18 (Indianola), violating the Lead and Copper Rule Revision (LCRR) and Lead and Copper Rule Improvements (LCRI) regulations at 40 C.F.R. 141, Subpart 1, by failing to develop and submit an initial service line inventory to the State of Oklahoma by the October 16, 2024 deadline
- vii. Exceeded Purchase Order Report

B. FLOODPLAIN

- i. Pittsburg County Floodplain Report

7. FISCAL TRANSACTIONS

- A. Claims and Purchase Orders
- B. Transfers
- C. Monthly Reports
- D. Blanket Purchase Orders
- E. Payroll

8. UNFINISHED BUSINESS

None.

9. AGENDA ITEMS

- A. Discussion, Consideration and Take Action to Approve Lease Purchase Agreement for Wildlands Fire Apparatus- Crowder Fire Department
- B. Discussion, Consideration and Take Action to Approve/Disapprove the Collective Commitment Agreement from Surrounding Counties to Support the Atoka Energy Park Project.
- C. Discussion, Consideration and Possible Action to Approve Requisitioning/Receiving Officers for Fiscal Year 2025-2026
- D. Discussion, Consideration and Possible Action to Approve “Amended” Emergency and Transportation Revolving Fund, ETR, Fund Renewal Contract between Pittsburg County District 3 and the Oklahoma Cooperative Circuit Engineering District Board (OCCEDB) for Shady Grove Road Project Number ETRCR3-61-3(17)25
- E. Discussion, Consideration and Possible Action to Approve “Amended” Emergency and Transportation Revolving Fund, ETR, Fund Renewal Contract between Pittsburg County District 3 and the Oklahoma Cooperative Circuit Engineering District Board (OCCEDB) for Briar Road Project Number ETRCR3-61-3(18)25

F. Discussion, Consideration and Possible Action to Approve "Amended" Emergency and Transportation Revolving Fund, ETR, Fund Renewal Contract between Pittsburg County District 3 and the Oklahoma Cooperative Circuit Engineering District Board (OCCEDB) for Four Corners Road Project Number ETRCR3-61-3(20)25

10. RESOLUTIONS

- A. Resolution 26-005 to Cancel Purchase Order(s)- Tannehill VFD
- B. Resolution 26-006 to Authorize the Sale of One (1) Hyster Stand Up Forklift to Wagoner County Emergency Management - Emergency Management
- C. Resolution 26-007 to Cancel Purchase Order(s)- Russellville VFD

11. ROAD CROSSING PERMITS

- A. Permit 26-001 Canadian Valley Telephone Company to install Permanent Telephone Line in Section 10, Township 7N, Range 15E- District 1
- B. Permit 26-002 Canadian Valley Telephone Company to install Permanent Telephone Lines- District 1
- C. Permit 26-003 OklaTel Communications to install Permanent Telecommunication Lines- District 3

12. NEW BUSINESS

CONSIDERATION AND POSSIBLE ACTION WITH RESPECT TO ANY OTHER MATTERS NOT KNOWN ABOUT OR WHICH COULD NOT HAVE BEEN FORESEEN PRIOR TO THE POSTING OF THIS AGENDA.

13. 10:00 A.M. - PUBLIC HEARINGS

- A. Public Hearing 25-003 to Establish a Cemetery- District 1
- B. Public Hearing 26-001 to Establish a Cemetery- District 1

14. 10:00 A.M. - BID OPENINGS

None.

15. RECESS/ADJOURNMENT


Commissioners' Assistant

**PITTSBURG COUNTY COMMISSIONERS
JULY 14, 2025
MINUTES**

The Board of County Commissioners, Pittsburg County, met in regular session on July 14, 2025 at 9:00 A.M., Meeting held in County Commissioners Conference Room, after proper notice and agenda were posted indicating time and date. Agenda was posted at 8:40 A.M., July 11, 2025.

1. CALL THE MEETING TO ORDER: The meeting was called to order by Chairman Rogers.

2. ROLL CALL:	Charlie Rogers	Present
	Ross Selman	Present
	Mike Haynes	Present

3. APPROVAL OF AGENDA: Selman made a motion to approve the agenda; seconded by Haynes.

AYE: Charlie Rogers
Ross Selman
Mike Haynes

NAY: None.

Motion Passed.

4. APPROVE/DISAPPROVE MEETING MINUTES:

A. REGULAR MEETING FROM JULY 7, 2025: The minutes from the previous meeting, July 7, 2025 regular meeting were read. Selman made a motion to approve the minutes; seconded by Haynes.

AYE: Charlie Rogers
Ross Selman
Mike Haynes

NAY: None.

Motion Passed.

5. RECOGNITION OF GUESTS/PUBLIC COMMENTS: Bob Moore with Oklahoma Western Telephone Co of Clayton presented the board with the BizPower Benefits program.

Eddie Sanders stated that he will be the local liaison for the windmill project in District #3.

6. OFFICIALS – DEPARTMENT REPORTS:

A. COUNTY CLERK:

i. U.S. ENVIRONMENTAL PROTECTION AGENCY (EPA) NOTICE OF ADMINISTRATIVE ORDER FOR PITTSBURG COUNTY RURAL WATER DISTRICT #9 (MCALESTER), VIOLATING THE LEAD AND COPPER RULE REVISION (LCRR) AND LEAD AND COPPER RULE IMPROVEMENTS (LCRI) REGULATIONS AT 40 C.F.R. 141, SUBPART 1, BY FAILING TO DEVELOP AND SUBMIT AN INITIAL SERVICE LINE INVENTORY TO THE STATE OF OKLAHOMA BY THE OCTOBER 16, 2024 DEADLINE: Sandra Crenshaw explained the notice. The board reviewed the notice of administrative order.

ii. U.S. ENVIRONMENTAL PROTECTION AGENCY (EPA) NOTICE OF ADMINISTRATIVE ORDER FOR PITTSBURG COUNTY RURAL WATER DISTRICT #7 (ARPELAR), VIOLATING THE LEAD AND COPPER RULE REVISION (LCRR) AND LEAD AND COPPER RULE IMPROVEMENTS (LCRI) REGULATIONS AT 40 C.F.R. 141, SUBPART 1, BY FAILING TO DEVELOP AND SUBMIT AN INITIAL SERVICE LINE INVENTORY TO THE STATE OF OKLAHOMA BY THE OCTOBER 16, 2024 DEADLINE: The board reviewed the notice of administrative order.

iii. U.S. ENVIRONMENTAL PROTECTION AGENCY (EPA) NOTICE OF ADMINISTRATIVE ORDER FOR PITTSBURG COUNTY RURAL WATER DISTRICT #11 (KIOWA), VIOLATING THE LEAD AND COPPER RULE REVISION (LCRR) AND LEAD AND COPPER RULE IMPROVEMENTS (LCRI) REGULATIONS AT 40 C.F.R. 141, SUBPART 1, BY FAILING TO DEVELOP AND SUBMIT AN INITIAL SERVICE LINE INVENTORY TO THE STATE OF OKLAHOMA BY THE OCTOBER 16, 2024 DEADLINE: The board reviewed the notice of administrative order.

iv. U.S. ENVIRONMENTAL PROTECTION AGENCY (EPA) NOTICE OF ADMINISTRATIVE ORDER FOR PITTSBURG COUNTY RURAL WATER DISTRICT #14 (ELM POINT AREA), VIOLATING THE LEAD AND COPPER RULE REVISION (LCRR) AND LEAD AND COPPER RULE IMPROVEMENTS (LCRI) REGULATIONS AT 40 C.F.R. 141, SUBPART 1, BY FAILING TO DEVELOP AND SUBMIT AN INITIAL SERVICE LINE INVENTORY TO THE STATE OF OKLAHOMA BY THE OCTOBER 16, 2024 DEADLINE: The board reviewed the notice of administrative order.

v. U.S. ENVIRONMENTAL PROTECTION AGENCY (EPA) NOTICE OF ADMINISTRATIVE ORDER FOR SAVANNA, VIOLATING THE LEAD AND COPPER RULE REVISION (LCRR) AND LEAD AND COPPER RULE IMPROVEMENTS (LCRI) REGULATIONS AT 40 C.F.R. 141, SUBPART 1, BY FAILING TO DEVELOP AND SUBMIT AN INITIAL SERVICE LINE INVENTORY TO THE STATE OF OKLAHOMA BY THE OCTOBER 16, 2024 DEADLINE: The board reviewed the notice of administrative order.

vi. U.S. ENVIRONMENTAL PROTECTION AGENCY (EPA) NOTICE OF ADMINISTRATIVE ORDER FOR PITTSBURG COUNTY RURAL WATER DISTRICT #18 (INDIANOLA), VIOLATING THE LEAD AND COPPER RULE REVISION (LCRR) AND LEAD AND COPPER RULE IMPROVEMENTS (LCRI) REGULATIONS AT 40 C.F.R. 141, SUBPART 1, BY FAILING TO DEVELOP AND SUBMIT AN INITIAL SERVICE LINE INVENTORY TO THE STATE OF OKLAHOMA BY THE OCTOBER 16, 2024 DEADLINE: The board reviewed the notice of administrative order.

vii. EXCEEDED PURCHASE ORDER REPORT: Rogers read the exceeded purchase order report.

B. FLOODPLAIN:

i. PITTSBURG COUNTY FLOODPLAIN REPORT: The board reviewed the June floodplain report.

7. FISCAL TRANSACTIONS:

A. CLAIMS AND PURCHASE ORDERS: Rogers made a motion to approve the purchase orders for payment after review and signature; seconded by Selman.

AYE: Charlie Rogers
Ross Selman
Mike Haynes

NAY: None.

Motion Passed.

B. TRANSFERS: Selman made a motion to approve the transfers; seconded by Haynes.

AYE: Charlie Rogers
Ross Selman
Mike Haynes

NAY: None.

Motion Passed.

C. MONTHLY REPORTS: Rogers made a motion to approve the monthly reports of officers; seconded by Haynes.

AYE: Charlie Rogers
Ross Selman
Mike Haynes

NAY: None.

Motion Passed.

D. BLANKET PURCHASE ORDERS:

DEPT	PO	AMOUNT	VENDOR
District 3	550	\$ 1,000.00	T3 Tire & Welding
District 3	552	\$ 7,000.00	CMC Express
District 2	553	\$20,000.00	Warren Power
District 2	555	\$ 3,000.00	Parrott Trucking
District 2	556	\$ 1,500.00	Kiamichi Automotive
Sheriff	558	\$ 4,000.00	Custom Technologies
Sheriff	559	\$ 500.00	Staples

Rogers made a motion to approve the blanket purchase orders; seconded by Selman.

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July 14, 2025
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AYE: Charlie Rogers
Ross Selman
Mike Haynes

NAY: None.

Motion Passed.

E. PAYROLL: Rogers made a motion to approve the mid-month payroll; seconded by Selman.

AYE: Charlie Rogers
Ross Selman
Mike Haynes

NAY: None.

Motion Passed.

8. UNFINISHED BUSINESS: None.

9. AGENDA ITEMS:

A. DISCUSSION, CONSIDERATION AND TAKE ACTION TO APPROVE LEASE PURCHASE AGREEMENT FOR WILDLANDS FIRE APPARATUS – CROWDER FIRE DEPARTMENT: Rogers stated the total lease purchase price of \$177,350.40. Selman made a motion to approve the lease purchase agreement; seconded by Haynes.

AYE: Charlie Rogers
Ross Selman
Mike Haynes

NAY: None.

Motion Passed.

B. DISCUSSION, CONSIDERATION AND TAKE ACTION TO APPROVE THE COLLECTIVE COMMITMENT AGREEMENT FROM SURROUNDING COUNTIES TO SUPPORT THE ATOKA ENERGY PARK PROJECT: Selman explained the project. Rogers made a motion to approve the agreement; seconded by Selman.

AYE: Charlie Rogers
Ross Selman
Mike Haynes

NAY: None.

Motion Passed.

Date: January __, 2025

July 14, 2025

To: The City of City of McAlester / Pittsburg County

From: Atoka County, Bryan County, Johnston County, Pontotoc County, Pushmataha County, Choctaw County, McCurtain and Coal

Subject: Collective Commitment from Surrounding Counties to Support the Atoka Energy Park Project

Dear

We, the undersigned counties, proudly express our collective commitment to support the City of Atoka and the Atoka Energy Park project. This transformative initiative represents a significant opportunity to foster economic growth, enhance energy resilience, and create sustainable job opportunities that will benefit Southeast Oklahoma and all participating counties and communities.

Acknowledgment of Shared Vision

The counties of Atoka, Bryan, Pittsburg, Johnston, Pontotoc, Pushmataha, Choctaw, Coal and McCurtain stand united in recognizing the immense potential of the Atoka Energy Park project. We understand the long-term economic and infrastructural benefits that this project will deliver, not only to the City of Atoka but to the broader region, strengthening our collective economies and improving quality of life for our residents.

Commitment to the Master Utility Service Agreement

As a demonstration of our commitment, we pledge to collaborate with the City of Atoka to finalize and co-sign the Master Utility Service Agreement (MUSA). By leveraging the unique strengths, resources, and populations of each of our counties, we aim to assist Atoka in qualifying for public benefit programs, securing necessary approvals, and providing the Atoka Energy Park with the strongest opportunity for success.

Population & Financial Data Contribution

Each county shall provide up-to-date population numbers, financials and other relevant demographic data to assist in project planning, qualification for public benefit programs, and long-term development strategies.

Recognition of Economic Benefits

The Atoka Energy Park project promises to:

- Create significant direct and indirect employment opportunities across all phases of development and operation.
- Enhance infrastructure capabilities, including energy and utility systems, that will have a positive ripple effect on regional industries.
- Generate increased tax revenues and attract additional investments to our counties.
- Serve as a catalyst for innovation and technological advancement in energy solutions.

Conditions of Commitment

The following represent conditions to ensure our participation:

1. **Direct Benefit and Profit Sharing**
 - o Direct profit-sharing mechanisms from the Atoka Energy Park project will be implemented for each participating county to ensure equitable benefits.
2. **Project Plan Approval**
 - o The project plan, including underwriting, shall be reviewed and approved by the lender/underwriting entity to ensure feasibility and alignment with financial requirements.
3. **Contractor Qualifications**
 - o The project must be developed and executed by highly qualified contractors who meet or exceed the standards of the attached list of vendors. All contractors must be vetted through the underwriting process to ensure quality and compliance.
4. **Risk Mitigation**
 - o Implementation of all risk mitigation strategies outlined within the project feasibility study to ensure the project's long-term sustainability and success.
5. **Job Force Development**
 - o The inclusion of the surrounding counties in workforce development initiatives and programs is a critical component of this project. Training and employment opportunities will be prioritized to ensure residents across all counties benefit directly from the project.
6. **Infrastructure Expansion**
 - o Commitment from the lender and the City of Atoka to consider and develop additional infrastructure projects, such as fiber or other civil infrastructure, to support both the project and the broader needs of the region.

Roles and Responsibilities

The participating counties agree that their management and operational responsibilities shall be limited to revenue distribution derived from the Atoka Energy Park project. This ensures that the counties can focus on leveraging the benefits of the project while maintaining transparency and equity in the allocation of funds.

All investments and project development activities to date have been borne exclusively by the development partners and the City of Atoka. As such, the following responsibilities remain with the City of Atoka and development contractors:

1. **Regulatory Compliance and Permitting**
 - o The City of Atoka shall oversee and remain responsible for all regulatory compliance, permitting processes, and meeting all local, state, and federal requirements.
2. **RFP and Vendor Management**
 - o The City of Atoka will establish and manage the parameters for all Requests for Proposals (RFPs) and ensure the selection of vendors and contractors aligns with the project's strategic objectives and city regulations.
3. **Project Management and Operations**
 - o The City of Atoka, in partnership with the development entities, will retain full responsibility for the operational management of the Atoka Energy Park, ensuring efficient execution and adherence to established timelines.

4. **Revenue Distribution**

- o The counties will participate in the distribution of revenues generated by the project, as determined by agreed-upon by each counties profit-sharing agreement with the City of Atoka.

5. **Support and Advocacy**

- o Counties will provide ongoing support through advocacy, public engagement, and ensuring alignment between the project's objectives and regional needs.

Commitment to Collaboration and Success

Our counties are fully committed to fostering a collaborative environment that ensures the Atoka Energy Park project achieves its goals. Together, our collective region looks forward to assisting in the development of a secure foundation for sustainable growth and innovation that will serve as a model for other regions across Oklahoma and other rural communities across the United States.

We look forward to the partnership with the City of Atoka and all involved stakeholders to realize the full potential of this transformative project.

Sincerely,

Atoka County

Name: _____

Date: _____

Title: Commissioner, Atoka County

Email: _____

Phone: _____

Bryan County

Name: _____

Date: _____

Title: Commissioner, Bryan County

Email: _____

Phone: _____

Signature Page Continued

Pittsburg County

Charlie Rogers

Name: [Signature]

Date: July 14, 2025

Title: Commissioner, Pittsburg County

Email: boco@pittsburg.okcounties.org

Phone: 918-423-1338

Johnston County

Name: _____

Date: _____

Title: Commissioner, Johnston County

Email: _____

Phone: _____

Pontotoc County

Name: _____

Date: _____

Title: Commissioner, Pontotoc County

Email: _____

Phone: _____

Pushmataha County

Name

Date: _____

Title: Commissioner, Pushmataha County

Email: _____

Phone: _____

Signature Page Continued

Choctaw County

Name

Date: _____

Title: Commissioner, Choctaw County

Email: _____

Phone: _____

Coal County / Coalgate

Name

Date: _____

Title: Commissioner, Coal County

Email: _____

Phone: _____